Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1391
Claimant:	Daniel Ayala
Adjuster:	Christopher Wong

3 Sep 2023 - Claim opened following a report of a low-speed collision in a parking lot. Insured vehicle was stationary when struck at the rear bumper by a third-party vehicle reversing out of a space. Both drivers reported no visible damage beyond scuffs. Liability appears clear on the third-party driver. Claimant reports a back strain and has retained counsel, so all further contact to go through the attorney's office.

6 Sep 2023 - Received a letter of representation from claimant's attorney. Requested medical authorization forms and the initial treatment records. Attorney's office confirmed the claimant has been seen at an urgent care facility and is following up with a primary care physician. Estimate on the rear bumper and tail light assembly requested from the repair shop; photos uploaded to the file.

9 Sep 2023 - Spoke with the attorney's paralegal regarding the status of the medical records. Urgent care notes received and reviewed. Diagnosis is lumbar strain with a recommendation for physical therapy and rest. No imaging performed at this time. Attorney's office indicated they will send a demand package once treatment is complete. Noetd that the claimant has missed some work and will request wage documentation.

15 Sep 2023 - Repair estimate received and reviewed. Rear bumper replacement and tail light repair within expected range for the vehicle. Vehicle is currently at the repair shop awaiting parts. Rental coverage confirmed under the policy for the duration of repairs. Third-party carrier notified of liability position and asked to confirm their insured's coverage limits.

16 Sep 2023 - Third-party carrier confirmed coverage and has accepted liability in writing. Physical therapy records requested from the attorney's office for the next file review. Reserve reviewed and adjusted to reflect the bodily injury component. Diary set to follow up with counsel in two weeks for an update on treatment progress and the status of the demand package.

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Recorded Statement

Claim number:	C-1391
Statement of:	Daniel Ayala
Taken by:	Christopher Wong
Date:	11 Sep 2023

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather just give you the facts, but I suppose that's fine. [Claimant name].

Q: Thank you. Where were you when the collision occurred?

A: I was in the parking lot of a grocery store in Houston, Texas, driving slowly toward an open spot near the entrance.

Q: What were you doing right before impact?

A: I had just signaled and started to turn into the space. The other vehicle came backing out of the spot next to it, and it didn't stop.

Q: How fast were you traveling?

A: Maybe five or ten miles an hour. It was a parking lot, so nobody's really going fast.

Q: Did you have a chance to brake?

A: I did. I hit the brakes as hard as I could, but the other car's rear bumper caught my front driver's side corner anyway.

Q: Were you wearing your seatbelt?

A: Yes, always.

Q: Did the airbags deploy?

A: No. It was a low-speed impact. The jolt was enough to throw me forward and back against the seat.

Q: Did you feel any pain at the scene?

A: Not right away. I felt it in my lower back about an hour later, sitting in my car. It's a sharp ache that gets worse when I bend or sit too long.

Q: Have you sought medical treatment since the collision?

A: Yes, I went to urgent care the same week. They diagnosed a lumbar strain and gave me muscle relaxers and a referral to physical therapy.

Q: Is there anything else you'd like to add?

A: Only that I've missed some work because of it, and I'm still doing the exercises my therapist gave me. I'd like this resolved so I can get back to normal.

Q: Thank you. This concludes the statement.